

Express-Oh!

Special, Private, Priority — A Practical How-To — v10

Victor Chaos

Express-Oh!

Special · Private · Priority

Do Not Hybridize. This manual prepares equity-only matters. Do not append statutory damages claims, money damages counts, or jury demands to any document prepared under this framework. Mixing legal claims with an ex parte equity petition converts it into an ordinary civil lawsuit — named defendant, jury rights, law-side remedies. The equity posture collapses. File any statutory claims separately on the law side. This rule governs every prayer, every filing, every section of this manual.

Table of Contents

PART I: FOUNDATION

- [1. Who This Manual Is For](#)
 - [1a. What This Manual Does](#)
 - [1b. How to Use This Manual](#)
- [2. The Conscience Thesis](#)
- [3. The Classical Formula](#)
- [4. Equity Maxims](#)
- [5. The Construct — Three Words, Three Doctrines](#)

PART II: THE TRUST FRAMEWORK

- [6. Trust Anatomy](#)
- [7. Special Deposit vs. General Deposit](#)
- [8. When the Trust Forms](#)
- [9. Trust by Conduct — The Four Factual Elements](#)
- [10. The Beneficiary](#)

PART III: STAGE ONE — PRIVATE PRESENTMENT

- [11. Two Phases — Private Record and Court Enforcement](#)
- [12. Master Workflow](#)
- [13. Step One: The Instrument and Envelope](#)
- [14. Step Two: Acceptance and Declaration](#)

- [15. Step Three: Trust Purposes and Beneficiary](#)
- [16. Step Four: Return by Special Deposit](#)
- [17. The Three Notices](#)
- [18. Notice One — Call to Inspection and Accounting](#)
- [19. Notice Two — Non-Performance and Continuing Obligation](#)
- [20. Notice Three — Final Notice Before Filing the Bill](#)
- [21. What the Three Notices Produce](#)

PART IV: STAGE TWO — COURT ENFORCEMENT

- [22. The Federal Equity Jurisdictional Doorway](#)
- [23. Forum Selection — Federal Equity and Tennessee Chancery](#)
- [24. The Miscellaneous Filing](#)
- [25. Getting Before the Chancellor — Chambers Practice and Special Term](#)
- [The One Question — Do You See the Trust?](#)
- [26. The Bill in Equity — Structure and Substance](#)
- [27. Exhibit Discipline](#)

PART V: DUTIES AND REMEDIES

- [28. The Four Duties — What Each One Generates](#)
- [29. Equitable Remedies Only](#)
- [30. Inadequacy of Remedy at Law](#)
- [31. Protective Order in the Trustee's Vacancy](#)
- [32. The Tactical Architecture](#)

PART VI: EXCEPTION HANDLING

- [33. Refusal of Delivery](#)
- [34. Why Disclaimer Is Still a Win](#)
- [35. When the Trustee Goes Vacant — The Primary Mechanism](#)

PART VII: REFERENCE

- [36. Event Timeline](#)
 - [37. Silence and the Duty to Speak](#)
 - [38. Local Checklist](#)
 - [39. Worked Example — From Instrument to Chambers Order](#)
 - [40. Primary Treatise Authority](#)
 - [41. Glossary](#)
-

PART I: FOUNDATION

1. Who This Manual Is For

You are comfortable reading rules and local rules. The guide gives doctrine and templates, not case-specific advice.

You keep organized files. Certified-mail receipts, green cards, tracking printouts, dated copies of every instrument — each in its proper place. Equity proceeds on the record.

You hold an actual instrument. A statement, demand, payoff figure, or assignment from another party — something real to which this mechanism is directed.

1a. What This Manual Does

What this manual does: Prepares a private equity record — the certified-mail exchanges, trust declaration, and three-notice sequence — then files a Bill in Equity seeking protective orders, accounting, and appointment of a successor trustee.

What this manual does not do: It does not seek money damages, statutory penalties, or a judgment at law. It does not enforce itself — the private record is evidence; the decree comes from the chancellor.

1b. How to Use This Manual

A step-by-step guide to preparing a classical equity record and filing a Bill in Equity in federal Article III court or Tennessee chancery.

This manual will teach you to place a record before a chancellor and ask one question: do you see the trust?

That question — asked correctly, at the right time, with the right record — unlocks the machinery of a court of equity. Protective order. Equitable accounting. Successor trustee. Interlocutory decree of reconciliation. Final decree of settlement. Not because the chancellor creates the trust. Because the chancellor sees it.

2. The Conscience Thesis

Equity acts upon the conscience of the party. Gibson, *Suits in Chancery* §§ 4–5, 8. The conscience is charged when a person receives notice concerning a definite thing, retains that thing, uses that thing, claims benefit from that thing, or refuses to answer concerning that thing after the confidence has been declared. Gibson § 88.

The mechanism — special deposit, trust declaration, three-notice sequence — creates a private equity record. That record is the foundation of a Bill in Equity. The bill invokes the court's conscience. The

decree issues from the court. The private record does not enforce itself; it is evidence upon which the equitable decree is sought.

Equity jurisdiction is separate and distinct. The 1938 merger of law and equity unified procedure, not remedies. *Beacon Theatres, Inc. v. Westover*, 359 U.S. 500, 506–07 (1959); *Grupo Mexicano de Desarrollo, S.A. v. Alliance Bond Fund, Inc.*, 527 U.S. 308, 345–46 (1999).

If you seek money damages, statutory penalties, or a judgment at law, this manual is not your tool.

3. The Classical Formula

Notice + Res + Confidence + Retention + Benefit = Charged Conscience

These five elements together charge conscience; charged conscience requires answer; refused answer draws remedy from equity.

- *Notice* — knowledge of the declared purpose
- *Res* — the definite thing upon which equity acts
- *Confidence* — the trust relation
- *Retention* — the conduct confirming the trustee office
- *Benefit* — the interest derived from the thing held

All five present: conscience charged, decree follows.

— Gibson, *Suits in Chancery* §§ 4–5, 28–31, 67; Pomeroy, *Equity Jurisprudence* §§ 134, 155

The Res. The res must be definite, identified, and delivered — because equity follows the thing and charges the conscience of the person who touches it, holds it, profits from it, or refuses to account for it. Where the res is not definite, equity has no subject upon which to act. The mechanism creates a res — the specific statement, demand, payoff figure, or assignment received from the recipient, assigned a PTLN, endorsed with the trust declaration, and returned by certified mail under the purposes of inspection, accounting, settlement, and closure. The recipient who retains, uses, profits from, or refuses to account for the res has charged his own conscience.

— Gibson, *Suits in Chancery* §§ 295–297; Pomeroy, *Equity Jurisprudence* §§ 1009–1012

4. Equity Maxims

Equity regards as done that which ought to be done. Where the recipient ought to have returned the res, disclaimed the confidence, or accounted for the use, equity proceeds on the failure. It does not wait for the party to perform. > Gibson, *Suits in Chancery* §§ 59, 67; Pomeroy, *Equity Jurisprudence* §§ 134, 155

Equity looks to substance rather than form. The recipient's chosen label — creditor, holder, servicer, assignee — does not control whether the conscience is charged. Conduct controls: did the recipient receive the res, retain it, use it, benefit from it, or refuse to account? If the conduct is present, the equity arises regardless of the label. > Gibson, *Suits in Chancery* §§ 43, 67; Pomeroy, *Equity Jurisprudence* §§ 378, 134

Equity will not suffer a wrong without a remedy. Where the res is retained, used, claimed, or concealed after notice and confidence, equity supplies accounting, restitution, injunction, constructive trust, delivery, or such other conscience-based remedy as the condition requires. Pomeroy §§ 134, 155.

Equity regards the beneficiary as the true owner. The trustee holds legal title; the beneficiary holds equitable title by nature. The two titles are severable. Gibson, *Suits in Chancery*, Maxim 7; Pomeroy, *Equity Jurisprudence* § 1044.

Equity will not suffer a trust to fail for want of a trustee. A reluctant, refusing, disclaiming, or vacant trustee does not extinguish the trust. The chancellor fills the seat. The duties run on. Pomeroy § 1086 (removal and appointment of trustees); Gibson § 5954 (court's power to appoint and remove trustees); Gibson § 8783 (Chancery Court will remove trustee who fails in duty).

He who seeks equity must do equity. The Petitioner identifies the res truthfully, states the purpose plainly, preserves the record faithfully, gives opportunity to return or disclaim, makes no false charge, claims no hidden advantage, and stands ready to accept a true accounting. Gibson §§ 59, 67.

He who comes into equity must come with clean hands. No man may invoke equity while concealing his own fraud, misdescription, or misuse of the res in the very matter where relief is sought. Gibson §§ 59, 67; Pomeroy §§ 397–398.

Where equities are equal, the first in time prevails. First perfected notice, first special deposit, first declared purpose, first unrebutted record. The *SPECIAL PRIVATE PRIORITY* envelope asserts precisely this. Pomeroy §§ 385–388.

A trustee may not profit from the trust. A trustee may not profit secretly, deny accounting, or convert custody into ownership. This rule applies whether the trust is express, implied, resulting, or constructive. Gibson §§ 994–997; Pomeroy §§ 1044, 1053.

He who is silent when he ought to speak will not be heard when he ought to remain silent. A party who has received the res, retained it, benefited from it, been named as trustee, been given opportunity to disclaim, and chosen silence — that party has made a choice. Equity records the choice. > “If one maintain silence when in conscience he ought to speak, equity will debar him from speaking when in conscience he ought to remain silent.” — Gibson, *Suits in Chancery* § 67

Equity follows the thing into whose hands soever it passes. Where the res is transferred or assigned, equity may follow it and charge the conscience of the new holder who received with notice of the declared purpose. The thing impressed with equity does not lose its character by change of form when conscience remains chargeable. Pomeroy § 1053; Gibson §§ 451–453.

He who accepts the benefit must accept the burden. A recipient who retains the res, uses it, claims advantage from it, or proceeds upon it after notice cannot in conscience deny the duty to account. > Gibson, *Suits in Chancery* §§ 67, 994; Pomeroy, *Equity Jurisprudence* §§ 1044, 1053

5. The Construct — Three Words, Three Doctrines

Special. Private. Priority.

Three separate doctrinal acts, stacked on an envelope and inside a letter. Together they establish jurisdiction, define the relation, and assert first-in-time superiority before the recipient opens the body.

Special — Equity Jurisdiction. *Special* signals that this is an equity matter, not a law matter. The word tells the recipient — and any court that later reviews the record — that this is not a consumer dispute, not a debt collection matter, not a civil action at law. It is a proceeding in equity. When you write *SPECIAL* on the envelope, you assert the jurisdictional character of the proceeding before anyone opens the body. Gibson § 28; Pomeroy §§ 129–144.

Private — Forum and the Relation. *Private* signals the nature of the relation and the correct forum. This is not a public adjudication. It is an equity proceeding between trustee and beneficiary — a fiduciary relation that equity administers in chambers, not in open court. When you write *PRIVATE* on the envelope, you are not requesting secrecy. You are stating the forum: this matter belongs in equity, not in the adversary docket. Gibson §§ 770–776; Drewry, *Equity Pleading*; FRCP 77(b).

Priority — First in Time. *Priority* signals first-in-time superiority. The trust relation, once formed by delivery and retention, has temporal priority over any subsequent claim, lien, or encumbrance placed on the res by the trustee. When you write *PRIORITY* on the envelope, you assert the temporal primacy of the trust relation — this trust was declared before any subsequent claim arose, and equity recognizes it as first in time. Pomeroy §§ 385–388.

Where the Three Words Appear — and Why. The three-word stack runs through every document in the equity sequence:

- **The envelope** — first notice; the recipient sees it before opening; it establishes that what follows is a classified equity matter
- **The cover letter** — marks the packet as a Special Private Priority communication
- **The acceptance/declaration instrument** — marks the res as it returns
- **The three notices** — each is a Special Private Priority call upon the trustee; the label distinguishes them from debt validation requests or consumer complaints
- **The Bill in Equity** — caption or header bearing the three words, distinguishing the proceeding from an ordinary civil action

The stack is a thread. Every document in the chain carries the same signal — this is equity, this is private, this has priority.

No Magic Words. No magic word creates equity. Equity is created by the relation of conscience to fact. *Special*, *Private*, and *Priority* serve as notice, classification, and election; the operative equity arises from the definite res, the declared purpose, the confidence, the retention, the use, the benefit, and the refusal to account.

No Notarization Required. Equity existed before modern notarial habits and proceeds upon conscience, oath, record, witness, delivery, conduct, custody, benefit, and answer. A notarization may evidence an act, but it does not create the conscience of the recipient, the res, the confidence, or the duty to account.

PART II: THE TRUST FRAMEWORK

6. Trust Anatomy

The trust instrument satisfies every element of a valid express trust. The three certainties are present on the four corners:

Certainty of Intention. “*For the express purposes of inspection, accounting, settlement, closure, and release of all collateral and encumbrances*” — purpose stated expressly. Five purposes appear in the instrument. No implication, no constructive imputation.

Certainty of Subject Matter. “*Same subject matter on special deposit*” — the res is the precise instrument the recipient tendered. Not a class, not a general claim — the specific documentary instrument received.

Certainty of Object. “*For the benefit of [insert beneficiary here]*” — the cestui que trust is named. The beneficiary holds the equitable interest. The designation is complete on the face of the instrument.

Trust Roles — All Present.

- **Settlor** — you, delivering the res on special deposit with intent expressly declared
- **Trustee** — the recipient, appointed by delivery and confirmed by retention without disclaimer; when the trustee’s office becomes vacant, chancery fills it
- **Corpus** — the documentary res the recipient tendered, returned under the instrument
- **Purposes** — inspection, accounting, settlement, closure, and release of all collateral and encumbrances
- **Duration** — until all five purposes are accomplished
- **Beneficiary** — named in the blank, holding the equitable interest by declaration

Why “Special Deposit” Does Double Work. When a depositary receives property on special deposit for stated purposes, the depositary holds custody under purpose — no title. Misuse or commingling is breach. The depositor holds an equitable interest in the res. By writing “on special deposit,” two structures are layered: special deposit and express trust. If one is challenged, the other applies. Gibson, *Suits in Chancery* §§ 451–453; Story, *Equity Jurisprudence* § 453.

The Doctrine Behind the Instrument.

- The trust exists when the three certainties exist. Intention, subject matter, and beneficiary on the four corners of a signed and delivered instrument — that is a trust. No court creates it. The chancellor recognizes what is already there. Pomeroy §§ 1009, 1012; Van Zile § 438 (creation or declaration of trust).
 - Delivery vests the office; retention without disclaimer confirms it. Pomeroy §§ 1086–1087; Gibson § 5954.
 - Equity will not suffer a trust to fail for want of a trustee. Pomeroy § 1086; Gibson § 5954.
 - Where property is obtained by abuse of confidence, equity imposes a trust. Pomeroy § 1053.
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7. Special Deposit vs. General Deposit

The deposit doctrine cuts along a single line. A **general deposit** creates a debtor-creditor relation: title passes to the holder, the depositor becomes a creditor for the amount, and the remedy lies at law. A **special deposit** creates a trust relation: title stays with the depositor, the holder takes custody for the declared purpose alone, the depositor keeps the equitable interest, and equity has the matter.

The form of words at delivery controls which side of the line the deposit lands on. Gibson, *Suits in Chancery* §§ 451–453; Story, *Equity Jurisprudence* § 453; Van Zile § 438 (creation or declaration of trust); Pomeroy, *Equity Jurisprudence* § 1053.

The Tennessee Supreme Court confirmed the doctrine: a bill charging the holder of a special deposit as trustee for breach of trust is “plainly one of equitable cognizance.” *Bank of Memphis v. Walker*, 88 Tenn. 269 (1889). A special deposit is money or property entrusted to a holder not to be used but kept safely and specifically returned. *Catlin v. Savings Bank of New Haven* (Conn.).

The clause on this instrument — “*return delivery same subject matter on special deposit ...for the express purposes of inspection, accounting, settlement, closure, and release of all collateral and encumbrances*” — fixes the deposit as special at delivery. Purpose stated; title not transferred; equitable interest remains with the depositor.

8. When the Trust Forms

The trust is declared the moment you sign and dispatch the instrument by certified mail. Appointment of the trustee occurs by delivery; acceptance is confirmed by retention without disclaimer. Where delivery is refused, the refusal is itself an affirmative act of notice — the trust was declared on dispatch, and refusal preserves the record of breach rather than defeating formation. The four duties run from the date of attempted delivery in either posture.

9. Trust by Conduct — The Four Factual Elements

The trust relation does not exist merely because the sender declares it. Equity requires facts. The bill must plead the factual conduct from which the trust relation follows as a conclusion of equity.

Four factual elements must be pleaded and proved:

1. **Delivery of the res** — the Petitioner delivered a specific, identifiable instrument by certified mail. Plead: date of delivery, tracking number, proof of receipt.
2. **Retention without disclaimer** — the recipient received and held the res without returning any written disavowal. Plead: absence of any disavowal, continuing assertion of rights in the underlying obligation.
3. **Declared purposes** — the instrument stated, in explicit language, the purposes for which the res is held. Plead: the exact verbatim language, attached as an exhibit.
4. **Named beneficiary** — the instrument identified by name the person in whom equitable title vests. Plead: the exact name as written, and the factual basis for that person’s equitable interest.

Once these four elements are established, the trust relation follows as a conclusion of equity. The recipient is trustee because equity treats one who receives property for declared purposes and retains it without disclaimer as occupying the fiduciary office — not because the Petitioner called them one. Pomeroy §§ 1086–1087; Gibson § 5954.

The trust relation is created by conduct, not by caption. Delivery, retention, declared purpose, and named beneficiary — these facts, taken together, give rise to the relation.

Trust-by-Conduct Self-Audit. In your Facts section, you must see:

- (1) Definite res delivered — date and certified-mail tracking number; the specific instrument identified with particularity
- (2) Retention without disclaimer — recipient held the res for a stated period without returning any written disavowal; silence documented
- (3) Declared purposes stated verbatim — exact language of inspection, accounting, settlement, and closure; attached as exhibit
- (4) Named beneficiary with basis of equitable interest — the exact name appears; the factual basis for equitable title stated

If any element is missing from your draft, do not file. Complete the equity record first.

Pleading the Trust Relation. Draft in two parts. First, the facts — aver the delivery, the retention, the declared purposes, and the named beneficiary, each with specific dates, document references, and exhibits. Second, the conclusion — “based on the foregoing facts, the recipient holds the res as trustee for the beneficiary, with the fiduciary duties of inspection, accounting, settlement, and closure, and equity will not suffer the trust to fail for want of a trustee.” Both are required. A bill asserting the trust relation without pleading the underlying facts will be dismissed. A bill pleading facts without drawing the conclusion will be dismissed. Both are required.

10. The Beneficiary

The Core Rule. The beneficiary is the person in whom equitable title vests — whose will and substance created the trust. Equity regards the beneficiary as the true owner. The trustee holds legal title; the beneficiary holds equitable title by nature. The two titles are severable.

“By Nature” — Three Meanings, Each Load-Bearing.

- Equitable title arises from the trust relation itself — not from a grant by the trustee, not from a transfer document. The moment the trust is declared and the res impressed, equitable title vests in the beneficiary by the nature of what a trust *is*.
- It is the natural, substantive ownership — equity looks at what a thing *is*, not at the surface label. Legal title is form; equitable title is substance.
- It cannot be defeated by the trustee’s conduct or omission — because equitable title arises by nature and not by the trustee’s grace, the trustee’s refusal, silence, or disappearance does not extinguish it. The title survives the trustee. This is why chancery will not suffer a trust to fail for want of a trustee.

Common Designations.

- *Yourself* — if you are the person whose obligation is recorded, you are the equitable owner of the res. “For the benefit of [your full legal name]” is valid.
- *The trust entity* — use the full trust name from the trust instrument.
- *Petitioner as trustee for a named person* — if acting for someone who cannot manage their own affairs, name the protected party and note your trustee status.

What Not to Do. Do not name a party who has no equitable stake — a court will strike the instrument. Do not leave the blank empty — a trust with an unnamed beneficiary is void for uncertainty of object.

The Equitable Origin. Equity recognizes the beneficiary in whom the equitable interest already lies. Equity does not manufacture beneficiaries by self-designation. The stake must rest on a real origin: a resulting trust, a constructive trust, an express trust funded with advanced value, or a fiduciary relation already running. The classical pattern is the resulting trust — where one person’s substance passes into property, equity raises the trust in favor of the one whose substance funded the corpus. Pomeroy, *Equity Jurisprudence* §§ 1031–1043. Plead the facts from which the interest arises. The chancellor recognizes title only on the ground the bill supplies.

Capacity Before the Chancellor. The Petitioner appears before the chancellor as **Beneficiary**. The intermediate acts — accepting as Grantee, declaring as Grantor/Settlor, delivering on special deposit — are the mechanism that creates the trust. Once the trust is established, the Petitioner’s capacity is Beneficiary. The beneficiary holds equitable title by nature. Plead the factual basis for that capacity in the same paragraph that declares it: delivery of value, advancement of substance, position on the underlying obligation. No separate court order, name change, or administrative declaration gates the equitable capacity.

PART III: STAGE ONE — PRIVATE PRESENTMENT

11. Two Phases — Private Record and Court Enforcement

The equity practitioner must distinguish two separate stages. Confusing them produces defective filings.

Stage One — Private Equity Presentment. What you do before any court is involved:

- **Acceptance as Grantee** — receive the instrument and acknowledge receipt for purposes of reconciliation
- **Trust declaration** — declare the trust purpose on the face of the instrument, naming the beneficiary and the four duties
- **Special deposit return** — deliver the impressed res back by certified mail, creating a timestamped record of delivery
- **Three notices** — call upon the trustee to perform and mark each period of non-performance, giving the trustee opportunity to disclaim

Stage One creates the private equity record — certified mail receipts, green cards, tracking records, retained copies. The record is proof of conduct, declarations, calls upon the trustee, and silences. It is not a decree. It is not an order. It is evidence.

Stage Two — Federal Bill in Equity. What you file when Stage One has produced a record but no compliance:

- **Verified pleading** — every factual averment made oath to
- **Exhibits** — the instrument, the three notices, the certified mail receipts, the green cards
- **Jurisdictional statement** — Article III judicial power, inherent equitable jurisdiction, inadequate remedy at law, Special Term / chambers practice under FRCP 77(b)
- **Prayer for relief** — protective order, appointment of successor trustee, equitable accounting, interlocutory decree of reconciliation, final decree of settlement

The private presentment creates the record; the Bill in Equity invokes the court's conscience. The record is not the decree. The record is the evidence upon which the decree is requested.

A Petitioner who treats the private presentment as self-enforcing finds no court has acted. A Petitioner who files a Bill in Equity without the private record — no exhibits, no certified-mail proof, no timeline — draws dismissal. Stage One creates the record. Stage Two invokes the court.

12. Master Workflow

Read this once before beginning. Return to it as you work through each stage.

Stage One — Private Equity Record

1. **Pull the instrument.** Confirm you hold a real statement, demand, payoff figure, or assignment from the recipient.
2. **Photocopy the instrument twice.** Before marking anything: one pristine photocopy of the instrument as it arrived (proves what the recipient sent, untouched). Mark the original. Then photocopy the marked original. File both copies — pristine and marked — in the equity record. The marked original goes back to the recipient; your two photocopies stay.
3. **Address the envelope.** Print *SPECIAL PRIVATE PRIORITY* between the return address and recipient address. Use Priority Mail + Certified Mail + Return Receipt (green card).
4. **Write the acceptance and declaration on the instrument.** Copy the clause verbatim. Fill in the beneficiary's full legal name. Sign as Grantee, Grantor/Settlor. Add *Without Prejudice — All Rights Reserved*. Date in ink.
5. **Assign the Private Trust Ledger Number (PTLN).** At acceptance, assign: *PTLN-YYYY-MMDD-XXXX-NN* — year, date, your initials, sequential entry number. Annotate every document in the equity sequence with this number. **This is the capture:** the commercial account number is now crosswalked to the PTLN — the instrument is identified by its ledger number, not the account it arrived on. No commercial account number appears in any document after acceptance.
6. **Name the beneficiary correctly.** The Petitioner is never the trustee — the Petitioner holds Grantee, Grantor/Settlor, or Beneficiary status. The trustee is the recipient who holds the res by retention.
7. **Assemble the return packet.** Original instrument on top (res goes back, never stays), your signed acceptance/declaration, cover letter with tracking number. Seal the *SPECIAL PRIVATE PRIORITY* envelope.
8. **Mail at the USPS counter.** Priority Mail + Certified Mail + Return Receipt. Keep the white tracking receipt. File the green card when it returns.
9. **File your three certified-mail items.** Tracking receipt, green card, and your retained copy — all three in the same file, marked with the tracking number.
10. **Send Notice One.** After delivery confirms: call upon the trustee to render a full equitable accounting. Certified mail, return receipt. File the receipt.
11. **Send Notice Two.** 14–30 days after Notice One with no response. Certified mail. File the receipt.

12. **Send Notice Three.** 14–30 days after Notice Two with no response. Certified mail. File the receipt.

13. Step One: The Instrument and Envelope

Before the letter, the envelope does work. Print or write three words in the center of the return address area:

From: [Your Name]
SPECIAL PRIVATE PRIORITY
To: [Recipient's Name / Entity]

The words must be legible — typewriter, label maker, or clean block handwriting.

Use the recipient's full legal name as it appears on the instrument.

Step One Checklist

- ☐ *SPECIAL PRIVATE PRIORITY* printed between return and recipient address blocks
 - ☐ Legible typewriter, label-maker, or clean block handwriting — no cursive
 - ☐ At USPS counter: Priority Mail + Certified Mail + Return Receipt (green card)
 - ☐ Keep the certified mail receipt (white slip with tracking number) — staple to file copy
 - ☐ When green card returns, file it with receipt and retained copy of the instrument
 - ☐ Save or print USPS tracking report once delivery shows complete
-

14. Step Two: Acceptance and Declaration

Write the acceptance, declaration, and return in one clean instrument. Use this language verbatim:

“I accept as Grantee and return delivery same subject matter on special deposit as Grantor/Settlor, for the express purposes of inspection, accounting, settlement, closure, and release of all collateral and encumbrances, for the benefit of [insert beneficiary here].”

By: _____, Grantee, Grantor/Settlor. Without Prejudice — All Rights Reserved.

Accept as Grantee. Declare the special deposit as Grantor/Settlor. Return the res. One sentence, three acts.

Write directly on the original statement. The recipient's instrument becomes the trust res, marked with your acceptance, declaration, and return in a single hand. The instrument and the declaration are the same piece of paper — that is what makes the res travel back impressed with the trust.

“*Without Prejudice*” is the chancery master's reservation — no admission, no waiver, every equitable right remains intact. “*All Rights Reserved*” creates a written record that no right was surrendered. Found throughout Daniell's *Chancery Practice* and English equity records.

Step Two Checklist

- ☐ Copy the verbatim clause — letter for letter, no paraphrasing

- [] Write the clause directly on the face of the original statement
- [] Insert the beneficiary's full legal name into the bracketed blank
- [] Assign the PTLN: *PTLN-YYYY-MMDD-XXXX-NN* — annotate the instrument and every subsequent document
- [] Sign exactly: *By: [Your Full Legal Name], Grantee, Grantor/Settlor.*
- [] Add: *Without Prejudice — All Rights Reserved* directly under the signature
- [] Date next to signature, in blue ink
- [] Photocopy pristine instrument before marking; mark original; photocopy marked original; both copies stay in file

15. Step Three: Trust Purposes and Beneficiary

The Four Trust Duties. Each is a separate fiduciary duty cognizable in equity:

- **Duty of Inspection** — examine, identify, and hold the res segregated for its declared purpose; produce all underlying records, source documents, and chain of title or assignment, held upon oath. Gibson § 994; Pomeroy § 1044.
- **Duty of Accounting** — keep accurate records and render a full accounting upon the beneficiary's call; formal equitable accounting of all transactions, credits, payments, charges, offsets, and adjustments, rendered upon oath, from inception to present. Gibson § 994; Story § 453.
- **Duty of Settlement / Reconciliation** — apply the res to settle and close the obligation as declared; reconciliation of the true balance, mutual accounting between parties, determination of what, if anything, remains owed. Pomeroy § 1044; Gibson § 994.
- **Duty of Closure / Release** — settle and close the matter, remove collateral and encumbrances, issue appropriate releases once settlement is complete. Pomeroy § 1044; Van Zile § 441 (trustee and cestui que trust may maintain a proceeding for administration of the trust).

Step Three Checklist — Choose the Beneficiary

- **Q1 — Are you the person whose name appears on the underlying obligation?** If yes, name yourself. Stop.
- **Q2 — Are you acting as trustee for a minor, an estate, or a person under disability?** If yes, name the protected party and note your trustee status.
- **Q3 — If both are No:** default to yourself as the equitable owner of the obligation recorded on the instrument.

16. Step Four: Return by Special Deposit

The instrument returns the res in the same sentence that accepts and declares it. *"I accept as Grantee and return delivery"* — one act. You are not keeping the res. The res travels back with the trust impressed upon it.

- **Grantee** — you received the instrument; you hold the right to declare what happens to it next
- **Grantor** — you declared the trust purpose and named the beneficiary; you created the equitable relation by instrument
- **Settlor** — you delivered the res back on special deposit; you funded the trust by returning the corpus impressed with its declared purpose

Retain your copies. The original instrument goes back to the recipient — the res never stays. You keep four things: a copy of the pristine instrument, a copy of the marked-up instrument, the certified mail receipt, and the green card.

Two Addresses, Two Purposes. The res goes back to two places:

1. **The return address on the instrument** — the address the recipient used to send it to you.
Delivery to the origin creates the trust relation.
2. **The registered agent** for the entity — available through the state’s business entity search.
Delivery to the registered agent is constructive notice. Do not file anything with the Secretary of State or any government registry; public filing destroys the private character of the proceeding.

Both by certified mail, both with return receipts. File both tracking numbers and both green cards.

Step Four Checklist — Packet Assembly and Pre-Mail Confirmation

- ☐ The **original** instrument in the packet — the res goes back, it never stays
 - ☐ Acceptance / declaration / return instrument, signed and dated, on top
 - ☐ Cover letter referencing the certified mail tracking number and instrument identifiers
 - ☐ Duplicate copies of every page made and retained
 - ☐ Certified mail tracking number written on your retained copy
 - ☐ Envelope sealed; *SPECIAL PRIVATE PRIORITY* visible on front
 - ☐ Recipient’s full legal name matches the instrument exactly — no abbreviations
 - ☐ Acceptance/return language copied verbatim and fully filled in — no empty brackets
 - ☐ At USPS counter: Priority Mail + Certified Mail + Return Receipt all selected
-

17. The Three Notices

The instrument establishes the trust. The three notices are the calling sequence — give the trustee the opportunity to perform, mark the moments of non-performance, and convert silence into the equitable admission on which the chancellor decrees. Each notice is sent by certified mail, return receipt requested.

The three notices exist to convert silence into an equitable admission. They are the evidence of non-performance that the chancellor inspects when asked “do you see the trust?” Their full doctrinal effect is stated at *Section 25* and at *The One Question*.

Each subsequent notice encloses photocopies of the green cards and certified mail receipts from every prior notice in the sequence. This is not repetition — it is the equitable method of closing the loop. The trustee who receives Notice Three holds in hand proof that they received Notices One and Two. “I never got that” is no longer a defensible position. Classical chancery courts proceeded on the whole record; each notice carrying prior proof serves the same principle — the chancellor sees a closed loop of delivery, call, and silence.

18. Notice One — Call to Inspection and Accounting

When: After the green card returns or tracking shows delivered.

What it does: Gives the trustee the first opportunity to perform. Creates the first record of the beneficiary's call upon the trustee. If the trustee responds, the trust is being administered. If the trustee is silent, the silence becomes the first mark of non-performance.

Notice One — Model Core Paragraph

The trustee now holds the instrument returned on special deposit, impressed with trust for the benefit of [Beneficiary Name], with declared purposes of inspection, accounting, settlement, and closure. The trust relation arose upon delivery of the res by certified mail on [Date], tracking no. [Tracking], and the trustee's retention without disclaimer.

The beneficiary calls upon the trustee to perform the four duties declared in the instrument:

1. Confirm receipt of this notice and acknowledge the trust relation arising from the instrument returned on special deposit.
2. Produce any documentation or information required to discharge the duties of inspection, accounting, settlement, and closure — the beneficiary stands ready to supply what is needed.
3. Give notice in writing of any impediment to timely performance — equity does not penalize the trustee who communicates; it records the trustee who remains silent.
4. Render a full accounting upon oath of all transactions, credits, charges, offsets, and adjustments touching the res from inception to the date of this notice.

This call is directed to the instrument dated [Date], PTLN [PTLN], returned to the trustee by certified mail tracking no. [Tracking]. The trustee is called upon to respond within [X] days from the date of delivery.

Record of presentment: United States Certified Mail, Return Receipt requested, tracking no. [Tracking]. Delivery confirmation and green card on file.

Enclosures: (1) Copy of certified mail receipt from the return of the instrument on special deposit; (2) Copy of green card/return receipt confirming delivery; (3) Copy of the trust endorsement instrument.

19. Notice Two — Non-Performance and Continuing Obligation

When: After a reasonable period passes with no response to Notice One — typically 14 to 30 days.

What it does: Converts the first silence into an admitted non-performance. Gives the trustee a second opportunity with the consequence stated. A response after Notice Two shows the trustee performed only after a second call — not good faith administration. Continued silence is the second mark.

Notice Two — Model Core Paragraph

Notice One was delivered to the trustee on [Date], tracking no. [Tracking]. The four duties of inspection, accounting, settlement, and closure were called for. No response has been received. The trust record reflects the first mark of non-performance.

The beneficiary addresses the trustee a second time. The trust relation stands. The res remains in the trustee's hands. The duty to account has not diminished with the passage of time — it has accrued. The beneficiary calls upon the trustee a second time:

1. Acknowledge receipt of the instrument returned on special deposit and the call made in Notice One.
2. Disclose any impediment to performance — the beneficiary will accommodate what conscience permits.
3. Give written notice if additional time is required — the record will reflect the trustee's communication.
4. Render the full accounting upon oath called for in Notice One.

Silence in equity operates as acquiescence to the trust relation and as admission of the non-performance the record reflects. The trustee who remains silent a second time leaves the beneficiary no course but the court. The trustee is called upon to respond within [X] days from the date of delivery.

Record of presentment: United States Certified Mail, Return Receipt requested, tracking no. [Tracking]. Delivery confirmation and green card on file.

Enclosures: (1) Copy of Notice One certified mail receipt; (2) Copy of Notice One green card showing delivery; (3) Copy of the trust endorsement instrument enclosed with Notice One.

20. Notice Three — Final Notice Before Filing the Bill

When: After a reasonable period passes with no response to Notice Two — typically 14 to 30 days.

What it does: The third notice is the door closing. Three calls, three silences — the equity record is complete. The chancellor reading the bill sees that the beneficiary gave the trustee every opportunity, and the trustee chose non-performance three times. Three notices together constitute the equitable admission on which the court decrees.

Notice Three — Model Core Paragraph

The trustee has received two notices. No response has come. The first silence recorded the trustee's failure to account. The second silence confirmed it. The equity record stands: instrument delivered, trust declared, res retained, duties stated, calls made twice, silence given twice.

The trustee holds the res on special deposit. The four duties — inspection, accounting, settlement, and closure — have not been performed. The beneficiary, for whose interest the trust was declared, remains without the accounting that conscience requires.

The trustee is given one final opportunity to perform:

1. Declare whether the trustee intends to perform the duties of inspection, accounting, settlement, and closure.
2. Disclose any question or impediment that stands between the trustee and performance.
3. Give notice in writing if additional time is required.
4. Render the full accounting upon oath.

Should the trustee fail to respond in writing within [X] days of delivery, the beneficiary will present a Bill in Equity to a court of equity competent to act, praying for a protective order over the res, appointment of a successor trustee, and a decree of equitable accounting. The equity record is complete. The bill will follow.

Record of presentment: United States Certified Mail, Return Receipt requested, tracking no. [Tracking]. Delivery confirmation and green card on file.

Enclosures: (1) Copies of Notice One and Notice Two certified mail receipts; (2) Copies of Notice One and Notice Two green cards showing delivery; (3) Copies of the trust endorsement instruments enclosed with Notices One and Two.

This is the final notice before the bill is presented.

21. What the Three Notices Produce

- **The instrument** — trust declared, res impressed, trustee appointed by delivery
- **Notice One** — first call; first opportunity to perform; first mark of silence
- **Notice Two** — second call; consequence stated; second mark of silence
- **Notice Three** — final call; judicial relief noticed; third mark of silence
- **Three certified mail receipts and three green cards** — proof of service for each call

When the bill is filed, the Petitioner attaches the instrument, the three notices, and proof of service. The chancellor sees a beneficiary who gave the trustee every opportunity and a trustee who chose silence three times.

PART IV: STAGE TWO — COURT ENFORCEMENT

22. The Federal Equity Jurisdictional Doorway

Before any court hears a Bill in Equity, the jurisdictional doorway must be open.

Article III Judicial Power. The judicial power of the United States extends to all cases in law and equity arising under the Constitution. U.S. Const. art. III, § 2. The Equity Act of 1789 granted federal courts the power to administer equity according to the principles of the High Court of Chancery. *Grupo Mexicano*, 527 U.S. at 345–46; *Princess Lida of Thurn and Taxis v. Thompson*, 305 U.S. 456, 465 (1939).

Law/Equity Distinction Survives Merger. FRCP 2 merged procedure, not substance. The distinction between legal and equitable claims survives for purposes of remedies, jury rights, and the adequacy-of-remedy-at-law gate. *Beacon Theatres*, 359 U.S. at 506–07; *Dairy Queen, Inc. v. Wood*, 369 U.S. 469, 472–73 (1962).

Case-or-Controversy Requirement. In equity, the injury is the peril to the res and the inability to obtain the four declared duties without court intervention. *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560 (1992).

Subject-Matter Jurisdiction. The court's equity jurisdiction is inherent in the judicial function under Article III, Section 2 — not derived from statute. Federal courts have always possessed the equitable powers of the High Court of Chancery. *Grupo Mexicano*, 527 U.S. at 345–46. 28 U.S.C. § 1331 appears on the civil cover sheet for procedural compliance; equity jurisdiction exists independently of it.

Equity is not invoked by label, word stack, or private declaration alone. Equity is invoked when the bill places a definite res, a definite trust relation, a definite fiduciary duty, a definite breach, and a definite inadequacy of remedy at law before a court competent to act.

23. Forum Selection — Federal Equity and Tennessee Chancery

Role labels: *Petitioner* is the party who declared the trust, named the beneficiary, and returned the res — appearing before the court of equity seeking its protective jurisdiction. No respondent is named; the trustee is vacant in fact.

The primary posture is ex parte equity — no respondent, trustee vacant — and that goes to federal court on the miscellaneous docket. Tennessee chancery is the alternative when the res is held within the state or the beneficiary resides in Tennessee.

Federal Equity — Article III. Federal district courts retain equity jurisdiction under Article III. Two cases anchor the doctrine: *Grupo Mexicano* (federal courts inherit the equitable powers of the High Court of Chancery); *Beacon Theatres* (the substantive law/equity distinction survives merger). Equity pleads maxims, not statutes. The bill speaks in equity's voice — three certainties on the four corners, equitable title by nature, the maxim that equity will not suffer a trust to fail. Procedural rules — FRCP 53 for accounting through a special master, FRCP 65 for protective orders, FRCP 77(b) for chambers practice — mechanize equity; they do not replace it.

Rule — Do Not Hybridize. The inherent jurisdiction framing in this section is for the practitioner's orientation only. It does not appear in the bill itself. The bill invokes the court's equity jurisdiction directly, citing the treatise masters (Gibson, Pomeroy) for the substantive doctrine. Section 1331 appears on the JS-44 civil cover sheet only — for procedural compliance with the clerk's office. It does not appear in the bill as a basis for jurisdiction. Equity jurisdiction exists independently of statute; citing § 1331 in the bill is the same category error as citing any other statutory grant: it treats description as source.

Tennessee Chancery — The Classical Forum. Tennessee maintains a separate chancery court system never merged with the law side. Gibson's *Suits in Chancery* governs directly. The chancery court's equity jurisdiction is inherent — derived through North Carolina from the High Court of Chancery in England. Gibson § 23. The following statutes and constitutional provision describe and confirm that inherent jurisdiction; they do not confer it:

- Tenn. Code Ann. § 16–11–101 — general equity jurisdiction in chancery
- Tenn. Code Ann. § 16–11–103 — chancery jurisdiction over trusts, accounting, and equitable cognizance
- Tenn. Const. art. VI, § 8 — chancery courts as part of the constitutional judiciary

Verify with the specific chancery court in the county where the res is held or the recipient does business.

Rule — Do Not Hybridize. These statutory and constitutional citations are for the practitioner's orientation only. They do not appear in the bill itself. The bill invokes chancery's inherent equity jurisdiction directly — citing the treatise masters (Gibson, Pomeroy) for the substantive doctrine. To cite Tennessee Code as the basis for chancery jurisdiction is the same category error as citing § 1331 in federal court: it treats description as source. Statutes describe equity; they do not confer it.

24. The Miscellaneous Filing

When filing a Bill in Equity seeking only non-monetary relief, the correct designation in federal court is a *Miscellaneous Civil Action* — not a standard civil complaint.

Why the Miscellaneous Designation. The trustee is vacant. No respondent, no adversary, no one to serve. The bill proceeds ex parte on the petition of the beneficiary alone. The absence of a respondent is what makes it miscellaneous — not the amount in controversy.

Why Inherent Equity Jurisdiction — Not Diversity. Diversity jurisdiction under § 1332 requires adverse parties of different citizenship. This petition has no respondent. The court’s equity jurisdiction is inherent in the judicial function under Article III, Section 2 — not derived from any statute. Filing on the cover sheet under § 1331 satisfies the clerk’s procedural requirement; it does not describe the actual basis of the court’s power.

Why Code 890. The JS-44 has no equity or trust code. Code 890 — Other Statutory Actions — is the residual bucket for miscellaneous matters that do not fit any enumerated category. It is the only code that does not presuppose a statutory cause of action the Petitioner is not bringing.

What the Petitioner Selects on the Cover Sheet

- **Basis of Jurisdiction** — *Inherent Equity Jurisdiction* (Article III, Section 2 — equity jurisdiction exists independently of statute; § 1331 appears for procedural compliance only)
- **Nature of Suit** — *890 Other Statutory Actions*
- **Clerk-form description** — “Bill in Equity for private trust administration”
- **Do not** select Diversity; do not attach a jury demand

The Caption Format

IN THE UNITED STATES DISTRICT COURT FOR THE [DISTRICT] DISTRICT OF [STATE]
[PETITIONER NAME], Petitioner,

Case No. [assigned by clerk] Misc. [docket number per local rules]

PETITION FOR PROTECTIVE ORDER IN EX PARTE APPLICATION FOR EQUITABLE RELIEF

Miscellaneous appears on the civil cover sheet. The bill is styled as a Bill in Equity — consistent with Gibson’s classical form.

The Defendant Field. The JS-44 was designed for adversarial filings and has no field for “trust res.” Three approaches handle it: (1) Write “No Defendant — Ex Parte Miscellaneous Matter.” (2) Write “In Re: Private Express Trust” — identifies subject matter without naming an adversary. (3) Check the district’s local rules first for a miscellaneous-specific filing event that bypasses the standard form entirely. The field is clerical, not jurisdictional. Let the bill speak for itself.

Filing Steps.

- **At the clerk's counter:** Bring the petition, JS-44, and the \$52 miscellaneous filing fee. Say: "I'm filing an ex parte Bill in Equity on the miscellaneous docket for a chambers setting under Special Term, as the trustee's office is vacant. May I have the filing stamp?"
- **On CM/ECF:** Select Civil → Miscellaneous → Petition for Protective Order. The clerk-form description reads: "Bill in Equity for private trust administration."

Warning. If you file as an ordinary damages complaint, you invite a jury demand and surrender the equity framing from the outset. Misrouting creates a docket error that will require correction. Careful routing at intake prevents delay and later correction.

Holding the Line at the Clerk's Counter.

- "*You need to name a defendant.*" → "This is an ex parte petition in equity's protective jurisdiction. No respondent is named because the trustee is vacant. The filing proceeds without service of process."
- "*You have to file this as a civil complaint.*" → "The filing is a miscellaneous civil action, not a complaint. It seeks equitable relief only — no damages, no jury demand. It belongs on the miscellaneous docket under FRCP 77(b)."
- "*You need to pay the \$405 civil filing fee.*" → "The fee for a miscellaneous civil action is \$52. Please check the fee schedule for miscellaneous filings."
- "*This has to be served on the defendant.*" → "No summons issues from this filing. The petition is ex parte. If the court orders any party noticed after entry, the court directs that — the Petitioner does not initiate service."
- "*I've never seen one of these before.*" → "It's a Bill in Equity on the miscellaneous docket — the court's continuous equity jurisdiction. Your local rules cover miscellaneous civil actions. The judge's chambers can confirm the routing if needed."

If the clerk insists: "Please ask the supervising clerk or duty judge's chambers for guidance before assignment. The petition is captioned as a miscellaneous equity matter; misrouting it to civil intake creates a docket error." Then ask for the supervising clerk. If that fails, leave unfiled and call chambers.

25. Getting Before the Chancellor — Chambers Practice and Special Term

An ex parte equity petition does not need an open-court trial setting. It needs a chancellor — sitting in chambers, exercising the court's continuous equity jurisdiction, ruling on the papers.

What "Special Term" Means. A court of equity operates in two postures:

- **General Term** — the open-court session for contested adversarial matters: trials on the merits, motions in opposed cases, set hearings with both sides present.
- **Special Term** — the chambers session where the court acts on matters that do not require adversarial proceedings: protective orders, ex parte applications, references to a master, administration of trusts and fiduciary matters, and any act the court is empowered to do without notice and hearing. The court is "always open" for these purposes — FRCP 77(b) and former Federal Equity Rule 1 both preserve this.

The Five Categories That Belong at Special Term.

- Ex parte applications — the paradigm case

- Trust administration in the trustee's vacancy — appointment of successors, references to master, protective orders
- Protective orders preserving the res — FRCP 65 operates here
- Accounts, inquiries, and references to master — FRCP 53 governs the mechanics
- Orders of course and interlocutory procedural orders — entered on petition, without adversarial presentation

Why This Lane. The trustee is vacant — no party to notice, no adversarial process to run. The relief is preservative and in rem. Equity is continuously open — the trust cannot wait six months for an open-court calendar.

The Unbroken Chain of Authority.

- New York 1830 statutes — first American use of “Special Term” nomenclature
- New York 1846 Constitution — preserved General Term / Special Term nomenclature as the bridge from chancery into the merged court
- Federal Equity Rule 1 (1912) — “*District Court Always Open For Certain Purposes — Orders at Chambers*” — explicitly codified the chambers practice
- 28 U.S.C. § 452 — “All courts of the United States shall be deemed always open for the purpose of filing proper papers, issuing and returning process, and making motions and orders”
- FRCP 77(a) and (b) — absorbs Equity Rule 1; § 77(b) authorizes “any other act or proceeding” in chambers and expressly carves out ex parte hearings
- *Grupo Mexicano*, 527 U.S. 308 (1999) — reaffirms that federal courts sit in equity with the same powers the High Court of Chancery exercised in 1789

Federal Authority — FRCP 77(b)

“Any other act or proceeding may be done or conducted by a judge in chambers, without the attendance of the clerk or other court official, and anywhere inside or outside the district. But no hearing — other than one ex parte — may be conducted outside the district unless all the affected parties consent.” — Fed. R. Civ. P. 77(b)

The “other than one ex parte” qualifier is the operative phrase: ex parte chambers proceedings are expressly contemplated.

Tennessee Chancery. Tennessee chancery never merged with the law side. Gibson treats the chancellor's availability as continuous. Tenn. R. Civ. P. 65.03 governs ex parte protective and temporary restraining orders and is the modern textual hook for the chambers practice.

How to Actually Get In. Three instruments filed together:

- **The petition itself** — the verified Bill in Equity, filed as a miscellaneous civil action
- **A Petition to Chambers** — one page, directed to the assigned judge's chambers, citing FRCP 77(b), requesting chambers consideration ex parte
- **A cover letter to chambers** — addressed to the judge's chambers (not the clerk's office), identifying the petition, the procedural posture, and respectfully requesting prompt attention

Model Language for the Petition to Chambers

TO THE HONORABLE [JUDGE NAME], in chambers:

Petitioner, by this petition filed with the Court’s miscellaneous equity petition of even date, respectfully requests that the petition be considered and ruled upon in chambers under the Court’s continuous equity jurisdiction.

This request is made pursuant to:

1. Federal Rule of Civil Procedure 77(b), which preserves the Court’s authority to conduct any act or proceeding in chambers, expressly including ex parte hearings;
2. The Court’s inherent equitable jurisdiction to act protectively upon a trust res where the trustee’s office is vacant, under the maxim that equity will not suffer a trust to fail for want of a trustee (Pomeroy, *Equity Jurisprudence* § 1086; Gibson, *Suits in Chancery* § 5954);
3. The historical chambers practice of chancery courts, preserved continuously from the Chancery Procedure Act 1852 through Federal Equity Rule 1 (1912) into the modern Federal Rules.

No respondent has been named; no service of process issues. The relief sought is preservative and in rem upon the trust res.

Petitioner stands ready to appear in chambers at the Court’s convenience. The trust res remains without protection pending the Court’s order.

Respectfully submitted, [Petitioner Name, signature, address, date]

Routing Detail. The petition is filed through CM/ECF or at the clerk’s counter. After the case number and judge assignment appear on PACER, address the chambers cover letter to the assigned judge by name and send it directly to chambers. In Tennessee chancery, hand-deliver or mail to chambers after filing with the clerk.

What Chambers Practice Looks Like.

- *Direct ruling on the papers* — the chancellor reviews the petition and cover letter, finds protective relief warranted, and enters an order without further hearing. The most direct outcome.
- *Brief chambers hearing* — the chancellor sets a short ex parte appearance. The Petitioner appears, presents the record, answers questions, and the chancellor rules.

Presenting the Record. The Petitioner does not argue a contested case in chambers. The Petitioner presents a record — and the chancellor inspects it. The question is not who wins a dispute, but whether the record demonstrates a valid trust relation, a vacant trustee, and a res that requires protective intervention.

At the chambers setting, bring everything physical: the instrument copy, certified-mail receipts, green cards, the three notices, and the non-response verified statement. Narrate the timeline — delivery, acceptance, declaration, return, notice sequence, silence. Offer the exhibits. Answer questions directly. Know the prayer cold: “Your Honor, what relief may the Court enter on this record?”

Chambers practice is by leave, not by right. The petition and cover letter request — not demand — chambers consideration. The chancellor’s discretion governs the remedy, not the trust. Once the four factual elements are established, the trust relation follows as a conclusion of equity. The chancellor cannot decline relief on the record. Gibson §§ 770–776 (jurisdiction of the chancellor at chambers), 5954 (court’s power to appoint and remove trustees); Pomeroy §§ 1086–1087.

The One Question — Do You See the Trust?

Everything in this manual — the acceptance, the declaration, the special deposit, the three notices, the exhibits, the timeline, the bill — converges on a single question the Petitioner places before the chancellor:

Your Honor — do you see the trust?

Not: “Will you create a trust?” Not: “Do you agree with my theory?” The trust is not the chancellor’s to create. The Petitioner declared it. The res was delivered. The trustee was appointed by conduct — receipt and retention without disclaimer. The four duties were stated. The beneficiary was named. The three notices were sent. The silence was recorded. The trust exists because the facts exist.

The chancellor’s office is to *see* it. Gibson § 4: equity acts upon the conscience of the party. When the Petitioner presents the record, the chancellor examines whether the facts are present. If they are, the trust relation follows as a conclusion of law and equity — not as a favor, not as a discretionary act, but as a recognition of what the facts have already established.

The court does not create the trust. The court sees what the Petitioner has already created and exercises its protective jurisdiction accordingly.

The question is the entire purpose of the chambers presentation. The Petitioner goes to place a record before the chancellor and ask: here is the res, here is the trustee, here is the declaration, here is the silence — do you see the trust? If the chancellor sees it, the remedies follow. Protective order. Accounting. Successor trustee. Decree of settlement. Not because the Petitioner persuaded the court to create something new — but because the Petitioner showed the court what already exists and asked the court to act on what conscience requires.

Every checklist item, every certified-mail receipt, every green card, every notice, every silence — all of it exists so that when the chancellor inspects the record, the answer to the question is inescapable.

26. The Bill in Equity — Structure and Substance

Trust-by-Conduct Self-Audit — Before You File. In your Facts section, you must see:

- (1) A definite res delivered with date and certified-mail tracking number
- (2) Retention without disclaimer for a stated period
- (3) The exact language of declared purposes — inspection, accounting, settlement, closure
- (4) The named beneficiary and why that person holds the equitable interest

If any one of these is missing, do not file. Complete the record first.

26a. The Equity Jurisdiction Reservation — Describing, Not Conferring

Equity jurisdiction is inherent, not statutory. The court’s equitable power springs from the judicial function itself — the conscience of the court, the nature of the judicial office under Article III. Statutes

describe what equity already does; they do not confer what equity did not already have. Gibson § 23: *“This original jurisdiction, thus derived... is called the inherent jurisdiction of the Court, to contradistinguish it from the statutory jurisdiction.”*

To cite a statute as the basis for equity jurisdiction is a category error. The practitioner cites statutes for procedural compliance — the JS-44 cover sheet, the filing fee code — and cites treatise authority (Gibson, Pomeroy) for the substantive equitable doctrine. FRCP rules mechanize equity; they do not replace it.

The reservation clause belongs in the Nature of the Proceeding paragraph, after the invocation of the court’s protective jurisdiction:

Nothing in this Bill seeks any remedy at law, statutory penalty, or money damages. All relief is equitable in character and arises from the inherent jurisdiction of a court of equity. The court’s equitable power is not derived from statute — statutes describe this jurisdiction, they do not confer it.

This clause does two things: it closes the door on any implied law-side reading of the bill, and it signals to the chancellor that the Petitioner understands the distinction between inherent and statutory jurisdiction.

Bill Structure Checklist

- **Caption — Petitioner only, no respondent.** List Petitioner by full legal name. No respondent because the trustee is vacant in fact. Style the pleading “Bill in Equity” — not “Complaint.”
- **Title — 12 words, no more.** “BILL IN EQUITY — EX PARTE CHAMBERS APPLICATION FOR SPECIAL TERM CONSIDERATION.” This routes the clerk and the chancellor in the right direction. Do not pad it.
- **Nature of the Proceeding.** State the matter as an ex parte equity application invoking the court’s protective jurisdiction over a trust res. Not a contested claim. The trust, the proofs, and the exhibits belong to the Petitioner. **Include the equity jurisdiction reservation clause here** — the statement that all relief is equitable and arises from inherent jurisdiction, not statute.
- **Jurisdiction paragraph — must contain FRCP 77(b).** Invoke Article III judicial power and the court’s inherent equitable jurisdiction. The court’s equity jurisdiction is inherent in the judicial function — not derived from statute. Cite *Grupo Mexicano*, *Beacon Theatres*, and *Princess Lida*. State the case or controversy: peril to the res and inability to obtain the four declared duties without court intervention. 28 U.S.C. § 1331 appears on the civil cover sheet for procedural compliance only. **FRCP 77(b) must appear in this paragraph** — the chancellor must see the chambers hook on the face of the bill.
- **Identity of the Res.** Describe the instrument with particularity: name, date, sender, recipient, account or reference number, and how it was impressed with the trust declaration. Attach as Exhibit A.
- **Identity of the Parties.** Petitioner by full legal name. No respondent because the trustee is vacant in fact. Name the vacant trustee for record identification only — not as an adverse party.
- **Facts — Event Timeline.** Chronicle the seven events: instrument received, accepted as Grantee, declared and returned by special deposit, delivery confirmed, three notices sent, silence recorded, bill filed. Each event tied to date, tracking number, and exhibit.
- **Facts — Four Trust-by-Conduct Elements.** Plead each element (see Section 9).
- **Exhibit list integrated into Facts.** Each factual paragraph cross-references its exhibit. The chancellor reads facts and proof together.

- **Fiduciary Relation Asserted.** Delivery, retention, declared purpose, and named beneficiary give rise to the trust relation. Pomeroy §§ 1086–1087; Gibson § 5954.
- **Breach or Threatened Breach.** Aver the trustee’s non-performance: inspection denied, accounting refused, settlement unreached, closure blocked.
- **Inadequate Remedy at Law.** The controversy concerns custody, fiduciary duty, preservation of the res, and recognition of equitable title — none reducible to a money judgment without losing its essential character. Gibson §§ 28–31; *Beacon Theatres*, 359 U.S. at 506–07.
- **Conclusion paragraph.** State three things: (1) the recipient holds the res as trustee by conduct; (2) the Petitioner holds equitable title by nature; (3) equity will not suffer the trust to fail for want of a trustee.
- **Prayer for Relief — one sentence, answer the chancellor’s question.** Request: protective order over the res; decree for equitable accounting through a special master under FRCP 53; appointment of a successor trustee; interlocutory decree of reconciliation; final decree of settlement upon verified completion; release of all collateral and encumbrances; and collapse of the trust. No money damages. No statutory penalties. No jury demand.
- **Verification.** Every factual averment made oath to, as true to the Petitioner’s personal knowledge.
- **Exhibit List.** Alphabetical list of all exhibits with brief descriptions.
- **Certificate of Service.** If ex parte with no service, state that no service is required because no respondent is named.

How This Bill Gets the Chambers Meeting. Every element is calibrated toward one outcome: the chancellor sets a chambers date and asks what relief is sought. The title routes the clerk in 12 words. FRCP 77(b) in the jurisdictional paragraph puts the chambers hook on the face of the bill. The facts are tight — each paragraph tied to an exhibit, each establishing one element of the trust-by-conduct record. The prayer answers the chancellor’s question in one sentence. The bill is the key that opens the door. The trust documents, the notices, and the proof of mailing stay in the exhibit binder until the chancellor wants to see them.

27. Exhibit Discipline

Equity proceeds on the record. The chancellor cannot decree what the chancellor cannot see. Every material document must be attached as an exhibit, numbered, referenced in the bill, and served with the filing.

Required Exhibits

- **Exhibit A:** Original instrument received — the document the recipient sent, showing trust declaration and special deposit language
- **Exhibit B:** Copy of returned instrument — Petitioner’s retained copy showing how the res was impressed with trust before return
- **Exhibit C:** Special deposit letter — cover letter accompanying the returned instrument, stating the deposit terms
- **Exhibit D:** Certified-mail receipt — USPS receipt showing date of mailing, tracking number, and postage
- **Exhibit E:** Tracking confirmation — full USPS tracking history showing delivery status, date, and time
- **Exhibit F:** Green card or delivery proof — return receipt signed by recipient or electronic delivery confirmation

- **Exhibit G:** Notice One — first notice of trust relation and four duties
- **Exhibit H:** Notice Two — notice of non-performance and continuing obligation
- **Exhibit I:** Notice Three — final notice before filing the bill
- **Exhibit J:** Recipient response or non-response verified statement
- **Exhibit K:** Verified Statement of record custodian — authenticated chain of custody
- **Exhibit L:** Proposed equitable order — draft decree the court may sign if relief is granted

Missing exhibits create gaps the court cannot bridge. Attach everything. Reference every exhibit in the bill. The decree follows the record.

Model Verified Statement of Non-Disclaimer

STATE OF [STATE] COUNTY OF [COUNTY]

VERIFIED STATEMENT OF NON-DISCLAIMER

I, [Declarant's Full Legal Name], make oath and state as follows:

1. I am the Petitioner in the matter of [Trust Name or Trust Res Description]. I have personal knowledge of the facts stated herein.
2. On [Date], I sent a notice to [Recipient Name] at [Recipient Address] by certified mail, return receipt requested, stating that the recipient held the res as trustee for the benefit of [Beneficiary Name], with fiduciary duties of inspection, accounting, settlement, and closure. A copy of this notice is attached as Exhibit A.
3. The certified mail tracking number was [Tracking Number]. The USPS tracking record confirms delivery on [Delivery Date]. A copy of the tracking record is attached as Exhibit B.
4. The notice stated that the recipient could disclaim the trustee office by sending a written disavowal to [Declarant Address] within [Number] days of receipt — no later than [Disclaimer Deadline Date].
5. As of the date of this verified statement, I have not received any written disavowal or disclaimer from [Recipient Name]. No response of any kind has been received.
6. The period for disclaimer has expired. The recipient has retained the res without correction or disclaimer for more than [Number] days since receiving notice of the trust relation.
7. Despite notice of the trust relation and opportunity to disclaim, the recipient has continued to [describe conduct: enforce the obligation / claim benefit / assert rights under the instrument].

I declare upon oath that the foregoing is true and correct to the best of my knowledge and belief.

[Declarant's Signature]

[Printed Name] [Address] [Date]

ACKNOWLEDGMENT

State of [State], County of [County]. On [Date], before me appeared [Declarant Name], known to me to be the person whose name is subscribed to the foregoing instrument, and acknowledged that they executed the same for the purposes therein stated.

[Signature]

[Commission Expiration] [ID Number]

PART V: DUTIES AND REMEDIES

28. The Four Duties — What Each One Generates

Each trust duty maps to a specific equity remedy. The bill follows from the four declared purposes.

- **Duty of Inspection** → *Writ of production / order to produce* — compels production of all instruments, records, and documents touching the res from inception to present
 - **Duty of Accounting** → *Decree for equitable accounting* — compels formal accounting of all dealings with the res, upon oath, before the court or special master, verified against the documentary record
 - **Duty of Settlement / Reconciliation** → *Interlocutory decree of reconciliation* — directs application of the res to reconcile the account and determine the true balance
 - **Duty of Closure / Release** → *Final decree of settlement* — declares the trust settled and closed upon verified completion; releases collateral and all encumbrances; collapses the trust
-

29. Equitable Remedies Only

Every remedy this manual names is a historically equitable remedy — one that law courts cannot grant:

- **Protective order** — preserves the res; no money changes hands at this stage
- **Equitable accounting** — compels the fiduciary to render accounts upon oath; the court or a master receives them
- **Constructive trust** — imposes a trust on property wrongfully held; treats the holder as trustee for the rightful equitable owner
- **Appointment of successor trustee** — fills the vacancy when the trustee is vacant, refusing, or disclaiming
- **Interlocutory decree of reconciliation** — applies the res to determine the true balance
- **Final decree of settlement** — collapses the trust upon verified completion; releases collateral and encumbrances

Law courts assess damages. Equity prevents harm before it becomes irreparable. That is the line.

30. Inadequacy of Remedy at Law

The bill must plead why the remedy at law is inadequate. Equity acts only where the law courts cannot afford a sufficient remedy.

The remedy at law is inadequate because the controversy concerns custody, priority, fiduciary duty, preservation of the res, prevention of misuse, and recognition of equitable title — none of which is fully resolved by a later money judgment after the res has been impaired, transferred, consumed, or converted. A legal judgment comes too late: the trust res may be gone, the records destroyed, the equitable interest irreparably harmed.

“Equity will not suffer a wrong to be without a remedy, but it acts only where the remedy at law is inadequate — where the controversy involves rights of property, fiduciary relations, or matters of trust that cannot be reduced to a money judgment without losing their essential character.” — Gibson, *Suits in Chancery* §§ 28–31; Pomeroy, *Equity Jurisprudence* § 134

Beacon Theatres, 359 U.S. at 506–07: the adequacy-of-remedy gate remains the threshold for equitable intervention. Where the bill seeks only historically equitable relief — protective orders, accounting, constructive trust, and recognition of the trust relation — the law side cannot provide the remedy.

31. Protective Order in the Trustee’s Vacancy

When the trustee fails to perform the four declared duties, the equity record is complete. The trustee was appointed by delivery and accepted by retention without disclaimer. The trustee is now vacant in fact. The Petitioner appears before the court of equity as sole party, seeking its protective jurisdiction under the maxim that equity will not suffer a trust to fail for want of a trustee.

Model Prayer for Relief — Ex Parte Equity Application

Build the caption, jurisdictional statement, identification of parties, statement of facts, and trust allegations from the Bill Structure Checklist above. The prayer below is the operative request for decree:

Prayer for Relief — Petitioner respectfully prays that this Honorable Court enter a protective order preserving the trust res from transfer, encumbrance, or impairment pending final decree; appoint a successor trustee to perform the four declared duties of inspection, accounting, settlement, and closure under the Court’s supervision; refer the accounting to a special master under FRCP 53 for a full accounting upon oath of all dealings with the res; enter an interlocutory decree of reconciliation applying the res to the true balance; and upon verified completion, enter a final decree of settlement, release of all collateral and encumbrances, and collapse of the trust — with such other and further relief as the Court deems just.

32. The Tactical Architecture

Inversion of Dynamic. The recipient came as creditor demanding payment. You answered as Grantee acknowledging tender, then as Grantor naming purpose and as Settlor delivering the res. The roles flip without denial, without litigation, without a single disputed fact. The recipient now holds as trustee of a res they placed in motion — and stands vacant in fact if the matter reaches a court of equity.

Equity Jurisdiction — Uncontested. Once the recipient holds as trustee of an express trust, equity has exclusive jurisdiction over matters of fiduciary administration. The recipient cannot demand a jury trial on trust accounting — that is equity’s historic ground since the medieval court of chancery.

Defeats the “Manufactured Trust” Attack. The recipient tendered the res. They set the table. You received what was offered and declared its purpose. This is express, declared, written, on the four corners. The recipient cannot claim you invented the trust; they handed you the instrument that became its corpus.

The Envelope Closes Every Door. The *SPECIAL PRIVATE PRIORITY* label is noticed on its face before the envelope is opened. Delivery is proven by tracking and green card; refusal is proven by the returned envelope marked by USPS. Either way, the recipient is on notice. Refusal is an affirmative act demonstrating knowledge; receipt is the same fact in a different posture.

What This Looks Like in Practice. Before: a debtor — chaseable, garnishable, foreclosable, passed from collector to collector. After: a court of equity has frozen the instrument, ordered the other side to produce every record touching it, and named a neutral fiduciary to walk every credit, charge, and assignment upon oath. Either they prove what they say they are owed and the matter closes cleanly, or they cannot — and the obligation falls apart by their own books.

PART VI: EXCEPTION HANDLING

33. Refusal of Delivery

If the recipient refuses the certified mail:

What Counts as Refusal.

- Returned mail marked “Refused” — USPS stamps the envelope and ships it back
- Tracking status “Refused” or “Return to Sender”
- Unclaimed after notice — USPS delivers a notice card, no one collects within the hold period
- Delivery to a registered agent who declines physical acceptance

What the Equity Theory Does with Refusal.

- **Constructive notice** — refusal is an affirmative act demonstrating knowledge; the recipient cannot later plead ignorance
- **Breach of fiduciary duty** — refusal of the res while continuing to hold and service the underlying obligation is conduct inconsistent with disclaimer of the trustee office
- **Trust formation preserved** — the trust was declared when you sent the instrument; refusal is evidence going to breach, not formation

What You Do Next.

- Preserve the returned envelope unopened; write “Received [date], unopened, refused” on the back; file it
- Save the USPS tracking printout showing refusal status
- Send Notice One (notice of refusal and continuing trust obligation), again by certified mail

- Proceed through Notices Two and Three
- Plead refusal in the bill's Statement of Facts — refusal is an evidentiary fact, not a defect

USPS Edge Cases.

- **Envelope refused and returned unopened.** Refusal requires the recipient never opens the envelope. If the recipient opens the envelope and then ignores it — that is *receipt*, not refusal.
 - **Green card signed by a receptionist or family member.** Delivery to an agent in the ordinary course of business is delivery to the principal. Supplement the green card with the tracking record showing delivery, carrier's scan with timestamp, and certified mail receipt.
 - **Green card never returned but tracking shows "Delivered."** The tracking record is the primary backstop. USPS tracking with a "Delivered" scan is independently admissible under Federal Rule of Evidence 902(14). Print the full tracking history; pair it with the certified mail receipt and the retained copy. Courts routinely accept USPS tracking records in lieu of returned green cards when the record is complete.
-

34. Why Disclaimer Is Still a Win

The doctrine covers three postures, and every road ends at the same place: chancery administers the trust on the beneficiary's petition.

The Three Postures.

- **Acceptance by retention** — recipient holds without disclaimer; appointed and confirmed as trustee; bound to the four duties
- **Refusal or vacancy** — recipient refuses delivery or accepts and goes silent; trustee is vacant in fact; chancery fills the vacancy
- **Affirmative disclaimer** — recipient sends a writing disclaiming the office; the trustee seat is openly empty; chancery fills it on identical grounds

What Disclaimer Concedes. To disclaim the office, the recipient must necessarily acknowledge three things: (1) the res exists — you cannot disclaim an office over a thing that does not exist; (2) the trust was declared — you cannot disclaim trusteeship of a relation never declared; (3) an office was offered — you cannot disclaim something not offered. The recipient has put in writing every jurisdictional fact the bill needs.

Why the Beneficiary's Title Survives. Equitable title is held by nature. The trustee cannot give it because the trustee never had it. Disclaimer disposes of the legal title and leaves the equitable title exactly where it was. *Equity will not suffer a trust to fail for want of a trustee.*

Pleading the Disclaimer. Attach the disclaimer as an exhibit. Plead the three concessions. Plead the vacancy. Plead the beneficiary's surviving equitable title. Pray for appointment, accounting, settlement, and closure — the same prayer as under vacancy, on a record now in writing rather than inferred from silence.

What Disclaimer Is Not. A disclaimer is not a release of the underlying obligation. Continued enforcement after disclaimer is conduct inconsistent with the disclaimer itself, and chancery may treat such conduct as withdrawal of the disclaimer or as a separate ground for equitable relief.

35. When the Trustee Goes Vacant — The Primary Mechanism

There is never a respondent. The trustee was appointed by delivery and accepted by retention. When the trustee refuses to perform — inspect, account, settle, release — the trustee has not become an adversary. The trustee has become vacant. Equity treats absence of the fiduciary as a vacancy in the office.

Equity definition of “vacant”: A trustee who responds but does not perform the fiduciary duties owed remains vacant. The response does not cure the absence of performance — it is the record of continued non-performance. Delivery vests the trustee; the duties run from that moment; a response that neither accounts nor restores leaves the office vacant in fact. The three silences create the vacant-trustee posture; an inadequate response converts that posture from silence to non-performance, but the path is unchanged. Ex parte miscellaneous, Special Term in chambers, private decree.

Equity will not suffer a trust to fail for want of a trustee. — Pomeroy, *Equity Jurisprudence* § 1086; Gibson, *Suits in Chancery* § 5954

Why This Is Not an Adversary Proceeding.

- No injunction running against a vacant party — the bill operates *in rem* on the res, not *in personam* against the vacant trustee
- No joinder problem — the MIA trustee is not a necessary party; the beneficiary’s equitable interest is the entire jurisdictional basis
- No FRCP 65 entanglement — protective orders over the res do not require notice and hearing of a vacant fiduciary

What Chancery Does in the Trustee’s Vacancy. On the beneficiary’s verified petition, the chancellor may:

- Appoint a successor trustee to perform the four duties on the timetable the court sets
- Administer the trust through a special master under FRCP 53 or its chancery equivalent
- Issue a protective order preserving the res pending administration
- Order production of the underlying records from any party in custody of documents touching the res
- Enter a final decree of settlement once all four declared purposes are verified complete

Pleading the Trustee’s Vacancy. Establish three facts:

- **Appointment by delivery** — date of delivery, tracking number, evidence of receipt
- **Acceptance by retention** — absence of any returned disavowal, silence following the three notices
- **Vacancy in fact** — unanswered calls, dates of the three notices, resulting prejudice to the beneficiary

The chancellor is not asked to find adverse conduct — only that the office is vacant and needs filling.

The Standing Sequence.

1. Beneficiary holds the equitable interest in the res (declared by instrument, vested by delivery)
2. Trustee, appointed by delivery and accepting by retention, has refused or abandoned the office
3. Trust would fail for want of a trustee absent the court’s intervention

4. Beneficiary appears alone; consents to chancery's administration
 5. Chancellor exercises inherent equitable jurisdiction to preserve the res, fill the vacancy, accomplish the declared purposes
-

PART VII: REFERENCE

36. Event Timeline

Event 1: Original instrument received from [Recipient Name] on [date]. The res is [description — identified with particularity].

Event 2: Res returned by special deposit on [date]. Petitioner, as Grantor/Settlor, declared the trust purpose on the face of the instrument and delivered it back by certified mail. Tracking number: [number].

Event 3: Notice of trust relation delivered on [date]. Petitioner sent notice stating the recipient holds the res as trustee for the benefit of [beneficiary name], with fiduciary duties of inspection, accounting, settlement, and closure. Certified mail tracking: [number].

Event 4: Recipient given time to disclaim the trustee office. Notice stated that recipient must disclaim in writing within [number] days. Period expired on [date].

Event 5: Recipient failed to disclaim. No written disavowal was received. Silence within the stated period is acquiescence to the trust relation.

Event 6: Recipient continued to assert benefit from the res — enforcing the underlying obligation, claiming interest, or deriving benefit from the instrument.

Event 7: Equity bill filed to preserve the res and compel performance of fiduciary duty.

37. Silence and the Duty to Speak

Silence has equitable force only where the party had notice of the res, notice of the declared purpose, possession or benefit touching the res, opportunity to disclaim, and a duty in conscience to answer. Silence in the abstract is not the equity. Silence after notice, retention, benefit, and opportunity to disclaim is the equity.

He who is silent when he ought to speak will not be heard when he ought to remain silent. Gibson §§ 67, 73. The three notices are designed to give the party every opportunity to speak, disclaim, or perform before the silence is converted into the equitable admission upon which the decree issues.

Without notice, there is no duty to answer. Without a definite res, there is nothing upon which conscience can be charged. Without opportunity to disclaim, there is no election. The equity is the combination — not the silence alone.

Consent is inferred from silence or conduct under circumstances, for he who is silent when he ought to object will not be allowed to object when he ought to be silent. — Gibson, *Suits in Chancery* §§ 67, 73,

38. Local Checklist

Before filing, confirm every item is in your file:

- ☐ Original instrument received (pristine photocopy made before marking; marked photocopy made after endorsement)
- ☐ Acceptance/declaration instrument signed, dated, on the original
- ☐ Beneficiary's full legal name filled in the trust declaration
- ☐ *Without Prejudice — All Rights Reserved* under signature
- ☐ Return certified mail receipt (white slip) — filed with copy
- ☐ Green card returned — filed with receipt and instrument copy
- ☐ Notice One certified mail receipt — filed
- ☐ Notice Two certified mail receipt — filed
- ☐ Notice Three certified mail receipt — filed
- ☐ Tracking records printed for each mailed item
- ☐ Verified Statement of Non-Disclaimer made oath to
- ☐ All exhibits prepared and labeled
- ☐ Prayer for relief drafted — equitable remedies only, no damages, no jury demand
- ☐ JS-44 civil cover sheet completed: Basis of Jurisdiction — § 1331 for procedural compliance (equity jurisdiction is inherent in Article III), Nature of Suit 890
- ☐ \$52 miscellaneous filing fee confirmed
- ☐ Three paper copies of petition made

39. Worked Example — From Instrument to Chambers Order

The Initial Document

On March 3, 2026, John M. Doe receives a dunning letter from ABC Servicing, LLC, dated February 28, 2026.

John retains a pristine copy before marking, then a copy of the marked original. The original is the res.

Step One — Address the Envelope

From: John M. Doe
 [Return Address]
 SPECIAL PRIVATE PRIORITY
 To: ABC Servicing, LLC
 [Recipient Address]

Priority Mail + Certified Mail + Return Receipt (green card). Certified mail tracking number: 9410 1234 5678 9012 3456 78.

Step Two — Write the Instrument

John writes the following directly on the face of the dunning letter, in the top margin:

PTLN-2026-0304-0001-01 “I accept as Grantee and return delivery same subject matter on special deposit as Grantor/Settlor, for the express purposes of inspection, accounting, settlement, closure, and release of all collateral and encumbrances, for the benefit of John M. Doe.” By: John M. Doe, Grantee, Grantor/Settlor. Without Prejudice — All Rights Reserved. 03/03/2026

John photocopies the pristine letter before marking, then photocopies the marked original — both stay in his file. The marked original goes back in the *SPECIAL PRIVATE PRIORITY* envelope. John writes the tracking number on his retained copy.

Step Three — Name the Beneficiary

John is the person whose obligation the account records. He names himself: “for the benefit of John M. Doe.” Equitable title vests by nature.

Step Four — Mail

John seals the envelope, confirms the label, and mails at the USPS counter on March 4, 2026. Green card shows delivery March 7, 2026.

Three Notices — Sample Text

Notice One — March 21, 2026

Re: PTLN-2026-0304-0001-01

ABC Servicing, LLC:

You are hereby notified that the above-referenced instrument has been received, accepted as Grantee, and returned on special deposit as Grantor/Settlor for the benefit of John M. Doe, pursuant to the acceptance and declaration endorsed on the instrument itself and returned to you via certified mail on 03/04/2026, tracking no. 9410 1234 5678 9012 3456 78.

You hold this instrument as trustee of a special deposit for the benefit of John M. Doe, with fiduciary duties of: (1) inspection; (2) accounting; (3) settlement; (4) closure.

Please respond in writing within 30 days or be treated as having accepted the trustee office by retention.

Sincerely, John M. Doe

Notice Two — April 20, 2026

Re: PTLN-2026-0304-0001-01 — Second Notice of Non-Performance and Continuing Obligation

ABC Servicing, LLC:

On 03/21/2026, I sent Notice One calling upon you to render inspection, accounting, settlement, and closure. You have not responded, produced any records, rendered any accounting, or disclaimed the trustee office in writing.

You are again notified that you hold the above-referenced instrument as trustee of a special deposit with the fiduciary duties stated in Notice One. Continued silence will be treated as acquiescence to the trust

relation and your acceptance of the fiduciary duties it imposes.

Please respond in writing within 21 days or the equity record will be completed and a Bill in Equity will be filed with the appropriate court.

Sincerely, John M. Doe

Notice Three — May 11, 2026

Re: PTLN-2026-0304-0001-01 — Final Notice Before Filing Bill in Equity

ABC Servicing, LLC:

You have not responded to Notice One (03/21/2026) or Notice Two (04/20/2026). You have not produced records, rendered an accounting, or disclaimed the trustee office.

This is your final notice. Unless you perform the four fiduciary duties within 14 days of receipt of this notice, I will file a Bill in Equity with the United States District Court for the Middle District of Tennessee, seeking: (1) a protective order preserving the trust res; (2) a decree for equitable accounting; (3) appointment of a successor trustee; and (4) an interlocutory decree of reconciliation and final decree of settlement upon verified completion.

Sincerely, John M. Doe

All three notices sent by certified mail, return receipt requested. No response received from ABC Servicing, LLC at any stage. Equity record complete.

Event Timeline — Filled

Event 1: February 28, 2026. ABC Servicing, LLC sends instrument to John M. Doe. Res identified.

Event 2: March 4, 2026. John photocopies pristine letter, writes trust declaration on original, photocopies marked original, and returns res to ABC Servicing, LLC via Priority Mail + Certified Mail, tracking no. 9410 1234 5678 9012 3456 78.

Event 3: March 7, 2026. Green card shows delivery. ABC Servicing, LLC receives and retains the res without disclaimer.

Event 4: March 21, 2026. Notice One sent, tracking no. 9410 1234 5678 9012 3456 79. 30-day response period stated.

Event 5: April 20, 2026. No response. Notice Two sent, tracking no. 9410 1234 5678 9012 3456 80. 21-day response period stated.

Event 6: May 11, 2026. No response. Notice Three sent, tracking no. 9410 1234 5678 9012 3456 81. 14-day final period.

Event 7: May 27, 2026. No response. Bill in Equity filed.

Bill in Equity — Filled Sample

Caption

**IN THE UNITED STATES DISTRICT COURT FOR THE MIDDLE DISTRICT OF
TENNESSEE**

JOHN M. DOE, Petitioner,

Case No. _____ Misc. _____

**BILL IN EQUITY — EX PARTE CHAMBERS APPLICATION FOR SPECIAL TERM
CONSIDERATION**

Nature of the Proceeding

This is an ex parte Bill in Equity invoking the Court’s protective jurisdiction over a trust res. The petition presents a record for the chancellor’s inspection — not a contested claim with an adversary. The trust, the proofs, and the exhibits belong to the Petitioner. The trustee’s office is vacant. The Petitioner seeks chambers consideration under Special Term.

Nothing in this Bill seeks any remedy at law, statutory penalty, or money damages. All relief is equitable in character and arises from the inherent jurisdiction of a court of equity. The court’s equitable power is not derived from statute — statutes describe this jurisdiction, they do not confer it.

Jurisdictional Paragraph

Petitioner invokes the Court’s inherent equitable jurisdiction under Article III of the United States Constitution — the judicial power extends to all cases in equity, and equity jurisdiction is inherent in the judicial function, not derived from statute. Federal courts sitting in equity have jurisdiction over bills seeking protective orders, accounting, and the administration of express trusts. *Grupo Mexicano de Desarrollo, S.A. v. Alliance Bond Fund, Inc.*, 527 U.S. 308 (1999). Under FRCP 77(b), “any other act or proceeding may be done or conducted by a judge in chambers” — this petition is properly before the Court in chambers under its continuous equity jurisdiction. 28 U.S.C. § 1331 appears on the civil cover sheet for procedural compliance; it does not confer equity jurisdiction, which the court holds by inherent power.

The distinction between legal and equitable claims survives the procedural merger of law and equity under FRCP 2. *Beacon Theatres, Inc. v. Westover*, 359 U.S. 500 (1959). No adequate remedy at law exists. The controversy concerns fiduciary duty, trust administration, and preservation of a specific documentary res — none reducible to a money judgment without loss of the equitable interest. *Gibson, Suits in Chancery* §§ 28–31.

Facts — Trust Relation by Conduct

1. On February 28, 2026, Petitioner received a document from ABC Servicing, LLC. A true and correct copy of the trust property is attached as Exhibit A.
2. On March 3, 2026, Petitioner accepted the trust property as Grantee and assigned it PTLN-2026-0304-0001-01 — the capture point. From this moment, the trust property is identified by its ledger number, not by any commercial reference.
3. On March 4, 2026, Petitioner, as Grantor/Settlor, declared a private express trust on the trust property and returned it to ABC Servicing, LLC via Priority Mail + Certified Mail, tracking no. 9410 1234 5678 9012 3456 78. The trust declaration reads: “I accept as Grantee and return

delivery same subject matter on special deposit as Grantor/Settlor, for the express purposes of inspection, accounting, settlement, closure, and release of all collateral and encumbrances, for the benefit of John M. Doe.” Certified mail receipt attached as Exhibit D. Tracking confirmation attached as Exhibit E. Green card attached as Exhibit F.

4. On March 7, 2026, USPS tracking confirmed delivery. No disclaimer was received.
5. On March 21, 2026, Petitioner sent Notice One by certified mail, referencing PTLN-2026-0304-0001-01, calling upon the trustee to render inspection, accounting, settlement, and closure. Attached as Exhibit G.
6. On April 20, 2026, with no response, Petitioner sent Notice Two by certified mail, noting non-performance and calling for compliance within 21 days. Attached as Exhibit H.
7. On May 11, 2026, with no response, Petitioner sent Notice Three by certified mail, giving final notice of intent to file. Attached as Exhibit I.
8. No response, disclaimer, or performance has been received from ABC Servicing, LLC. The trustee is vacant in fact. Equity will not suffer the trust to fail for want of a trustee.
9. Petitioner is the equitable owner of the res by nature of the declared trust. The beneficiary’s title arose from the declaration, not from any grant by the trustee, and cannot be defeated by the trustee’s silence, refusal, or vacancy.

Prayer for Relief

WHEREFORE, Petitioner respectfully prays that this Honorable Court enter a protective order preserving the trust res — the instrument bearing PTLN-2026-0304-0001-01 and all records, assignments, and documents touching it — from transfer, encumbrance, or impairment pending final decree; appoint a successor trustee to perform the four declared duties of inspection, accounting, settlement, and closure under the Court’s supervision; refer the accounting to a special master under FRCP 53 for a full accounting upon oath; enter an interlocutory decree of reconciliation applying the res to the true balance; and upon verified completion, enter a final decree of settlement, release of all collateral and encumbrances, and collapse of the trust — with such other and further relief as the Court deems just.

No money damages are sought. No jury demand is made. All relief requested is historically equitable.

Respectfully submitted, John M. Doe, Petitioner, sui juris [Mailing Address] [Phone] · [Email] Date:
May 27, 2026

JS-44 Entries

- **Basis of Jurisdiction:** Federal Question — 28 U.S.C. § 1331
- **Nature of Suit:** 890 Other Statutory Actions
- **Clerk-form description:** “Bill in Equity for private trust administration”

Chambers Cover Letter — Model

[Date]

The Honorable [Judge Name] United States District Court Middle District of Tennessee [Chambers Address]

Re: John M. Doe — PTLN-2026-0304-0001-01 (Ex Parte Equity Petition)

Dear Judge [Name]:

I have filed with the Clerk of Court a Bill in Equity and Petition for Protective Order in the above-captioned matter. I write separately to chambers to advise that the petition has been filed and to respectfully request the Court's prompt consideration.

The proceeding is ex parte. No respondent has been named because the trustee is vacant in fact. The petition seeks: (1) a protective order preserving the trust res (PTLN-2026-0304-0001-01) pending administration; (2) a decree for equitable accounting; (3) appointment of a successor trustee; and (4) an interlocutory decree of reconciliation.

The trust res remains without protection until the Court acts. I stand ready to appear in chambers at the Court's convenience.

Respectfully, John M. Doe, Petitioner, sui juris [Mailing Address] [Phone]

What Comes Back. Chambers reviews the petition on its own schedule — days or weeks depending on the judge's docket. Maintain current telephone and email contact information for chambers. Three outcomes are most common:

- *Text order on the docket* — the chancellor grants the protective order, appoints a successor trustee, and refers the accounting to a special master on the papers, without a hearing.
- *Brief chambers conference* — chambers contacts the Petitioner by docket notice to ask procedural questions; the Petitioner appears; the chancellor rules.
- *Short ex parte hearing set* — brief chambers hearing, still ex parte; the Petitioner appears; the chancellor rules.

The PACER docket shows only the petition, civil cover sheet, and orders. No answer, no opposing counsel — because there is no respondent.

40. Primary Treatise Authority

- **Pomeroy, Equity Jurisprudence** — three certainties of a valid express trust; certainty of intention, subject matter, and beneficiary; the cestui que trust and the beneficiary's equitable interest; § 1086: removal and appointment of trustees — equity will not suffer a trust to fail for want of a trustee
- **Gibson, Suits in Chancery** — the bill for account and its structure; express trust as the primary vehicle into equity jurisdiction; the distinction between law-side remedies and equitable relief; § 994: appointment of trustee by chancery in the trustee's vacancy
- **Van Zile, Equity Pleading and Practice** — bills for account; the discovery-integral relationship; fiduciary relationships and their equitable treatment; prayer language in trust proceedings
- **Drewry, Equity Pleading** — classical equity pleading form; stating part, charging part, document-possession averment; bills for discovery integral to the bill for account

- **Victor Chaos, The Equity Blade** — the three-notice sequence; appointment by delivery and acceptance by retention without disclaimer; special deposit as trust conveyance; the PTLN system
 - **Victor Chaos, Self-Settling Trust v6** — private express trust as the governing instrument; grantor/settlor/beneficiary structures; equity court's recognition of the trust indenture as governing law
 - **Princess Lida of Thurn and Taxis v. Thompson**, 305 U.S. 456 (1939) — federal equity jurisdiction over trust administration and accounting
 - **Grupo Mexicano de Desarrollo, S.A. v. Alliance Bond Fund, Inc.**, 527 U.S. 308 (1999) — federal courts inherit the equitable powers exercised by the High Court of Chancery in 1789
-

Caution — Before You File

- **Facts must be true.** Every factual allegation must be verifiable from the records and provable in court. False facts forfeit the case and expose the Petitioner to sanctions.
 - **Doctrines must be verified before they are pled.** Before any citation enters a filed instrument, confirm that the doctrine still stands as the masters stated it.
 - **Read your district's local rules before you file.** Pull the local rules. Find the section on miscellaneous civil actions. Confirm the case-type code, filing fee, and CM/ECF event. These vary by district.
 - **The bill must be verified.** Every factual averment made oath to by the Petitioner's personal knowledge. A bill filed without verification is procedurally defective.
-

41. Glossary

Beneficiary / cestui que trust — the one who holds *equitable title by nature*; the title arises from the trust relation itself, not from any grant by the trustee; the trustee holds legal title as fiduciary only. Gibson § 994; Pomeroy § 1044.

Equitable accounting — a judicial remedy: the chancellor, or a special master under FRCP 53, orders the fiduciary to render a full account upon oath, receives it, and verifies it against the documentary record. Distinguish from *accounting* — the trust duty the trustee owes, naming the obligation to keep records and render accounts. These are not the same function; equity names each distinctly. Gibson § 994; Story § 453.

Grantee — the one who receives the instrument; in the operation of this mechanism, you receive as Grantee and thereby hold the right to declare the trust and return the res. Gibson, *Suits in Chancery* § 1.

Grantor — the one who creates and declares the trust by instrument; the declaration names the purpose and the beneficiary and thereby creates the equitable relation. Pomeroy, *Equity Jurisprudence* §§ 1009–1012.

Make oath — the classical equity phrase for verification of a pleading; the Petitioner makes oath to the truth of the bill. Not “sworn” — equity avoids that ambiguity. Drewry, *Equity Pleading*; Van Zile, *Equity Pleading*.

Miscellaneous docket — the residual docket category for equity-only proceedings, ex parte petitions, and matters without an adverse party; the designation is not lesser — it is correct for the ex parte equity posture.

Private Trust Ledger Number (PTLN) — a unique identifier assigned at acceptance: *PTLN-YYYY-MMDD-XXXX-NN*. Annotates every document in the equity sequence — instrument, trust endorsement, return cover letter, three notices, accounting — establishing a crosswalk from the original instrument to every subsequent charge, credit, and adjustment. Victor Chaos, *The Equity Blade*; *Bank of Memphis v. Walker* (1889).

The Capture — PTLN as the sole identifier. The moment the instrument is impressed with the trust declaration and PTLN, the trust property is identified by its ledger number — not by the commercial account number it happened to arrive on. The commercial account number lives in the facts section and exhibits for identification only. The prayer, the notices, the accounting, and every subsequent document reference only the PTLN. This is the capture: the commercial reference is subsumed into the trust identifier.

Res — the thing itself; the *specific documentary instrument* received from the recipient — not a class, not a general claim, but the precise corpus impressed with the trust. Pomeroy § 1009. **Identified with particularity:** name of instrument, date, sender identity, recipient identity, account or reference number, copy preserved (pristine + endorsed), certified mail tracking number on return, date returned, exact language of special deposit declaration, exact relief requested. Gibson, *Suits in Chancery* §§ 295–297.

Settlor — the one who delivers the res on special deposit; by delivery, the Settlor impresses the trust upon the corpus and funds the trust in the same act. Van Zile, *Equity Pleading* § 438 (creation or declaration of trust); Story, *Equity Jurisprudence* § 964.

Special deposit — a delivery or return of a definite thing for a declared purpose, where title and beneficial interest do not pass to the receiver, and where the receiver's possession is limited by the purpose declared. Misuse or commingling is breach of fiduciary duty. Gibson §§ 451–453; Story § 453; Van Zile § 439 (court of equity invested with peculiar power over the administration of trusts); Pomeroy § 1053.

Special master — a neutral officer appointed under FRCP 53 to conduct the equitable accounting, take evidence on disputed items, and report back to the chancellor; a *function*, not an office.

Special Term — the chambers session where the chancellor acts upon matters that do not require adversarial proceedings: ex parte applications, protective orders, trust administration; the court is continuously open for these purposes (Drewry, *Equity Pleading*; Federal Equity Rule 1 (1912); FRCP 77(b); 28 U.S.C. § 452).

Stage One — the phase before any court is involved; receives the instrument, declares the trust, returns the res by certified mail, sends the three notices. Gibson §§ 1–4; Pomeroy §§ 1009–1012.

Stage Two — the phase where the private equity record is filed as a Bill in Equity before a court of equity competent to act; invokes the court's conscience. Gibson §§ 28–31; FRCP 77(b); Article III.

Successor trustee — the fiduciary appointed by the chancellor under the maxim that equity will not suffer a trust to fail for want of a trustee; an *office*, not merely a function. Pomeroy § 1087; Gibson § 5954.

Trust by conduct — the trust relation arising from four factual elements: delivery of the res, retention without disclaimer, declared purposes, named beneficiary. Once these facts are pleaded and proved, the chancellor recognizes the trust relation. Pomeroy §§ 1086–1087; Gibson § 5954.

Trustee (appointed by delivery) — equity appoints the trustee by delivery of the res; one who holds the res without disavowal accepts the office; retention without disclaimer is the confirmation. Pomeroy § 1086; Gibson § 5954.

Without Prejudice — All Rights Reserved — the equity reservation written under the Petitioner's signature. "Without Prejudice" preserves all equitable rights without admission or waiver; recognized in English chancery practice for centuries (Daniell's *Chancery Practice*). "All Rights Reserved" creates a written record that no right was surrendered.

Authored by Victor Chaos · Not legal advice. Verify with counsel before acting.